

COUNTY USE ONLY

MDH USE ONLY

MINNESOTA DEPARTMENT OF HEALTH

Well Management Section, P.O. Box 64975, St. Paul, Minnesota 55164-0975
(651) 201-4587 or 800-383-9808

WELL DISCLOSURE CERTIFICATE

PLEASE TYPE OR PRINT ALL INFORMATION

Person filing deed must attach a \$40 fee payable to the county recorder.

km

440038

A. PROPERTY DESCRIPTION

Attach a legal description of the property.

COUNTY

Winona

LOT NUMBER

BLOCK NUMBER

ADDITION NAME

STREET NUMBER

Forgotten Lane

CITY

Minnesota City MN

STATE

ZIP CODE

55959

P.I.N. (OPTIONAL)

B. PROPERTY BUYER MAILING ADDRESS AFTER CLOSING

FIRST NAME

MIDDLE INITIAL

LAST NAME

COMPANY NAME (IF APPLICABLE)

Mathy Construction Company

ADDRESS

920 10th Ave. North , P. O. Box 189

ADDRESS

CITY

Onalaska

STATE

WI

ZIP CODE

54650

TELEPHONE NUMBER

(608) 783-6411

C. CERTIFICATION BY SELLER

I certify that the information provided on this certificate is accurate and complete to the best of my knowledge.

Edwin L. Maus

Name of Seller (Please Print)

x *Edwin L. Maus*

Signature of Seller or Designated Representative of Seller

9/20/07

Date

D. CERTIFICATION BY BUYER

The buyer or person authorized to act on behalf of the buyer, must sign a Well Disclosure Certificate for all deeds given in fulfillment of a contract for deed if there is a well on the property.

In the absence of a seller's signature, the buyer, or person authorized to act on behalf of the buyer may sign this Well Disclosure Certificate. No signature is required by the buyer if the seller has signed above.

Based on disclosure information provided to me by the seller or other available information, I certify that the information on this certificate is accurate and complete to the best of my knowledge.

Signature of Buyer or Designated Representative of Buyer

Date

IMPORTANT NOTE: The Minnesota Department of Health (MDH) will follow-up with the property buyer regarding any wells disclosed as not in use. If a well is not in use, the property owner must either return the well to use, have the well sealed by a licensed well contractor, or obtain an annual maintenance permit from the MDH for \$150. A copy of this Well Disclosure Certificate should be provided to the property buyer at the time of closing.

523155 9-28-07



MINNESOTA DEPARTMENT OF HEALTH
WELL DISCLOSURE CERTIFICATE
PLEASE TYPE OR PRINT ALL INFORMATION

Fill out a separate well information page if more than three wells are located on the property.

WELL #1				
COUNTY	QUARTER (OR GOVERNMENT LOT)	SECTION NUMBER	TOWNSHIP NUMBER	RANGE NUMBER
Winona	NE $\frac{1}{4}$ of SW $\frac{1}{4}$	2	107	8
WELL STATUS (Check only one box) WELL IS: ☐ IN USE (1) ☒ NOT IN USE (2) ☐ SEALED BY LICENSED WELL CONTRACTOR (3) (Call MDH to verify sealing record is on file.) If the well has been sealed by someone other than a licensed well contractor or a licensed well sealing contractor, check the well status as not in use.			YEAR WELL WAS SEALED OR SEALING RECORD NUMBER (IF KNOWN) NAME OF LICENSED WELL CONTRACTOR	

WELL #2				
COUNTY	QUARTER (OR GOVERNMENT LOT)	SECTION NUMBER	TOWNSHIP NUMBER	RANGE NUMBER
WELL STATUS (Check only one box) WELL IS: ☐ IN USE (1) ☐ NOT IN USE (2) ☐ SEALED BY LICENSED WELL CONTRACTOR (3) (Call MDH to verify sealing record is on file.) If the well has been sealed by someone other than a licensed well contractor or a licensed well sealing contractor, check the well status as not in use.			YEAR WELL WAS SEALED OR SEALING RECORD NUMBER (IF KNOWN) NAME OF LICENSED WELL CONTRACTOR	

WELL #3				
COUNTY	QUARTER (OR GOVERNMENT LOT)	SECTION NUMBER	TOWNSHIP NUMBER	RANGE NUMBER
WELL STATUS (Check only one box) WELL IS: ☐ IN USE (1) ☐ NOT IN USE (2) ☐ SEALED BY LICENSED WELL CONTRACTOR (3) (Call MDH to verify sealing record is on file.) If the well has been sealed by someone other than a licensed well contractor or a licensed well sealing contractor, check the well status as not in use.			YEAR WELL WAS SEALED OR SEALING RECORD NUMBER (IF KNOWN) NAME OF LICENSED WELL CONTRACTOR	

SKETCH MAP – Sketch the location of the well(s) and include estimated distances from roads, streets, and buildings. IF MORE THAN ONE WELL ON PROPERTY, USE THE WELL LOCATION NUMBER ABOVE TO IDENTIFY EACH WELL. The location of the well(s) must be provided. If the location of a well is not known, have the well located by a person qualified to locate wells, such as a licensed well contractor. See map attached
--

440038

LOCATION MAP

This form approved by the Minnesota Association of REALTORS®, which disclaims any liability arising out of use or misuse of this form.
© 2006 Minnesota Association of REALTORS®, Edina, MN

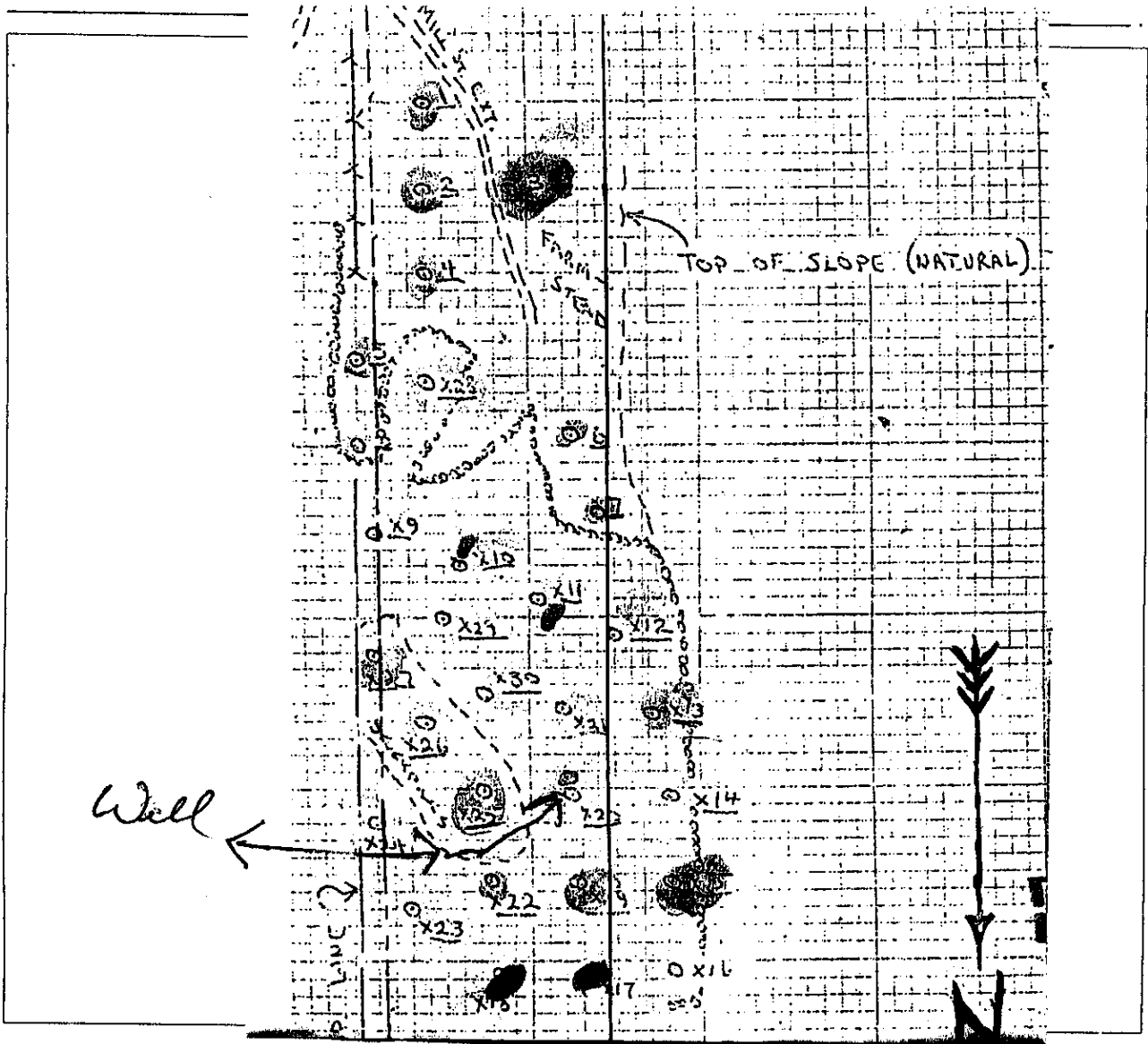
2. Please use the space below to sketch the real property being sold and, to Seller's knowledge, the approximate location of any of the following on the property.

4. ☐ PRIVATE SEWER SYSTEM ☒ WELL ☐ METHAMPHETAMINE PRODUCTION AREA
(Check all that apply.)

5. Include approximate distances from fixed reference points such as streets, buildings and landmarks.

6. Property located at 16698 FORGOTTEN LANE, MN CITY, MN 55959

7.



8. ATTACH ADDITIONAL SHEETS AS NEEDED.

9. Seller and Buyer initial:

G.R.M. 9-5-07
(Seller) (Date)

(Buyer) (Date)

- 10.

Jam 9-5-07
(Seller) (Date)

(Buyer) (Date)

11. MN-IM (8/06)

ORIGINAL COPY TO LISTING BROKER; COPIES TO SELLER, BUYER, SELLING BROKER

That part of the east 279.51 feet of the NE $\frac{1}{4}$ of the SW $\frac{1}{4}$ of Section 2, Tp. 107, Rg. 8, Winona County, Minnesota lying northerly of the following described line: Beginning at the Southeast corner of the NE $\frac{1}{4}$ of the SW $\frac{1}{4}$ of said Section 2, thence north 38° 40' west a distance of 175 feet; thence north 63° 50' west a distance of 198 feet, more or less, to a point, said point being 279.51 feet west of the east line of the NE $\frac{1}{4}$ of the SW $\frac{1}{4}$ of said Section 2 and there terminating, subject to a flowage easement over a portion of the above described property as described in Book 174 of Deeds, page 632, in the office of the County Recorder in and for Winona County, Minnesota.

Also subject to a driveway easement over and across the following described property, to-wit:

A strip of land 6 feet on each side of the following line: commencing at the Southeast corner of the NE $\frac{1}{4}$ of the SW $\frac{1}{4}$ of Section 2, Tp. 107, Rg. 8 from the point of beginning; thence north 38° 40' west 175 feet and there terminating.

Excepting therefrom the following:

That part of the Northeast Quarter of the Southwest Quarter (NE $\frac{1}{4}$ of SW $\frac{1}{4}$) of Section Two (2), Township One Hundred Seven (107), Range Eight (8), described as follows, to-wit: Beginning at the Southeast corner of the Northeast Quarter of the Southwest Quarter (NE $\frac{1}{4}$ of SW $\frac{1}{4}$) of said Section Two (2); thence running North 38° 40' West a distance of 175 feet to the point of beginning; thence North 63° 50' West a distance of 189.60 feet more or less to a point, said point being 279.51 feet from the West line of said Northeast Quarter of the Southwest Quarter (NE $\frac{1}{4}$ of SW $\frac{1}{4}$) of Section Two (2); thence North 0° 6' West and parallel with said East line of the Northeast Quarter of the Southwest Quarter (NE $\frac{1}{4}$ of SW $\frac{1}{4}$) of Section 2 275 feet; thence North 89° 54' East 125.35 ft; thence South 90° a distance of 235.60 feet; thence South 20° 10' East 131.15 feet to the point of beginning.

Also a driveway easement over and across the following described property, to-wit: A strip of land 6 feet on the Southerly side and 12 feet on the Northerly side of the following described line:

Commencing at the Southeast corner of the Northeast Quarter of the Southwest Quarter (NE $\frac{1}{4}$ of SW $\frac{1}{4}$) of Section Two (2), Township One Hundred Seven (107), Range Eight (8); thence North 38° 40' West 175 feet and there terminating.



Communication Memorandum

Check Document Type:

- ☐ Disclosure
☒ Water Well Maintenance Permit
☐ Monitoring Well Maintenance Permit
☐ Well Record/Sealing Record
☐ Other _____

440038 - 1

Identification Number

Date <u>8/16/2010</u>		MDH Staff Name <u>Kimberly Kay Benson-Johnson</u>	
Communication Type: ☐ Phone Call (Incoming/Return) ☐ Phone Call (Outgoing)		☒ Visit (Walk-in) ☐ Visit (On-site) ☐ Other _____	
Name of Person Contacted _____			
Street Address _____			
City _____	State _____	ZIP Code _____	Telephone Number () _____
Copy of Well Disclosure Certificate Sent? ☐ Yes ☐ No Date Sent _____			
Summary of Discussion Delegated Program has issued Maintenance Permit for Well. Delegated Program <u>Winona</u>			
Follow-up Action AC 318			